

Court No. - 37

Case :- WRIT - C No. - 57451 of 2014

Petitioner :- Brij Kishore Rai

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Sudhakar Pandey

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Vineet Saran,J.

Hon'ble Yashwant Varma,J.

The grievance of the petitioner is that he has taken electricity connection but has not been provided the electric meter and the bills raised against the petitioner are arbitrary. A demand of Rs. 34454/- was raised against the petitioner, which was to be paid by 31.10.2013 but the same was not paid and the electricity line of the petitioner has been disconnected. He thus filed this writ petition with the prayer for a direction to the respondents to reconnect the electricity line of the petitioner and furnish a reasonable and genuine electricity bill and also to direct the competent authority to make fair and impartial enquiry regarding irregularities of the Power Corporation. The electricity connection was given to the petitioner in the year 2010. The last bill which he has paid is of 31.1.2013. Thereafter for almost two years he did not pay any bills.

The contention of the petitioner is that the electric meter has not been installed for which the petitioner made several requests and thus, without installing the electric meter, the electricity charges cannot be raised against the petitioner.

Sri Mahboob Ahmad, learned counsel for Power Corporation submitted that according to own case of the petitioner, electricity meter was installed but the petitioner contends

that the same is not functioning properly. Since admittedly, the petitioner has not paid the electricity bills for the last almost two years, the disconnection of the electricity line cannot be said to be unjustified. If the petitioner has any grievance, he could have approached the Executive Engineer concerned under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid, we dispose of this writ petition with the direction that in case, with regard to his grievances made in this writ petition, the petitioner approaches the respondent no. 3- Executive Engineer by way of filing a suitable application along with a certified copy of this order, the same shall be considered and decided by the said respondent no.3 in accordance with law, by a reasoned and speaking order, as expeditiously as possible, preferably within a period of three weeks from the date of filing of the same. It is further provided that in case the petitioner is found liable to pay any electricity bills, the same shall be paid by him and within one week of such payment, the electricity line of the petitioner shall be reconnected.

With these directions, this writ petition stands disposed of.

Order Date :- 7.11.2014

Ashish Pd.

(Yashwant Varma, J.) (Vineet Saran, J.)